BRENDAN NGWA NFORBI
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CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **STAPLES THE OFFICE SUPERSTORE, LLC; and DOES 1 through 25, inclusive,** Defendants.	Case No.: C 26 12781 NW **COMPLAINT FOR DAMAGES AND INJUNCTIVE RELIEF** 1. Fair Credit Reporting Act, 15 U.S.C. § 1681b(b)(3)(A) 2. Investigative Consumer Reporting Agencies Act, Cal. Civ. Code § 1786.16(b) 3. Cal. Penal Code § 290.46(j) 4. California Unfair Competition Law, Cal. Bus. & Prof. Code § 17200 **JURY TRIAL DEMANDED**

Plaintiff BRENDAN NGWA NFORBI, appearing on his own behalf, alleges:

NATURE OF THE ACTION

1. This action concerns a specific accepted employment opportunity and a report-based failure to permit Plaintiff to begin paid work. Staples offered Plaintiff a full-time Retail Sales Supervisor position at its Milpitas, California store for $22.00 per hour. The offer was conditional on completion of a background screening, and it stated that the store's general manager would contact Plaintiff to confirm a start date when the screening results were returned.

2. Plaintiff completed every pre-day-one screening task communicated to him through the Staples and First Advantage hiring workflow. On October 7, 2026, First Advantage sent Plaintiff a Background Screening Notice stating that it was reporting public-record information to "Staples Retail" at 500 Staples Drive, Framingham, Massachusetts. After that transmission, Staples did not provide a manager-confirmed start date, orientation, a first shift, or authorization to report for paid work.

3. Plaintiff has not seen the Staples-specific report. On information and belief, a responsible Staples hiring or screening user received or accessed a report or report component and treated information from the California publicly disseminated sex-offender registry as a barrier to Plaintiff's commencement. Plaintiff pleads those internal facts on information and belief because the report, source fields, audit trail, applicant-tracking status, adjudication records, and hiring communications are in Defendants' or First Advantage's possession.

4. The actionable theory is not silence alone. Plaintiff alleges that Staples made or maintained an employer-controlled decision not to release him to paid work under the accepted offer after the report-based screening event, while withholding the report and rights information necessary to examine and challenge the source and use of the information. Plaintiff separately alleges that he elected to receive a copy of the investigative consumer report and did not receive that copy within the period required by California law, whether or not Staples characterizes the application as still pending.

5. Plaintiff seeks actual and statutory damages, enhanced or punitive relief only where authorized and proved, narrowly tailored equitable relief for any continuing violation, costs, applicable fees, and a jury trial on all triable issues. Plaintiff does not seek duplicate recovery or an order compelling Staples to employ him.

PARTIES

6. Plaintiff Brendan Ngwa Nforbi is an individual residing in Stockton, San Joaquin County, California. He applied for and accepted the position described below at a Staples store in Milpitas, Santa Clara County, California. He was ready and willing to complete lawful onboarding and perform assigned work.

7. Defendant Staples The Office Superstore, LLC ("Staples" or "Staples Retail Operator") is, on information and belief, the Staples retail operating and employing entity that operated the Milpitas store and participated in or controlled the relevant hiring and screening process. The October 7 notice identifies "Staples Retail" at 500 Staples Drive, Framingham, Massachusetts as the report recipient. Plaintiff names the Superstore entity because the offer, proposed workplace, and retail employment opportunity were associated with its Staples retail operations, while the employer-of-record, First Advantage client-account, applicant-tracking, and adjudication records will establish the precise capacities and acts attributable to it.

9. Plaintiff presently does not know the identities or capacities of Does 1 through 25. Plaintiff alleges each Doe defendant only to the extent that the person or entity procured, received, accessed, used, directed, authorized, or ratified the conduct alleged. Plaintiff will seek leave to amend when discovery identifies proper parties.

10. First Advantage is identified as the reporting agency and a relevant nonparty source of records. Plaintiff does not assert a cause of action against First Advantage in this complaint.

JURISDICTION AND VENUE

11. This Court has federal-question jurisdiction under 28 U.S.C. § 1331 because Plaintiff asserts a claim under the Fair Credit Reporting Act, including 15 U.S.C. § 1681b(b)(3)(A).

Jurisdiction and remedies are also governed by 15 U.S.C. §§ 1681n, 1681o, and 1681p.

12. The Court has supplemental jurisdiction under 28 U.S.C. § 1367(a) over the related California claims because they arise from the same background-screening workflow, report transmission, hiring process, noncommencement, and communications.

13. The Court has personal jurisdiction over the responsible defendants because the challenged conduct concerned hiring for a California retail position, occurred in connection with a California workplace, and was directed toward Plaintiff in California.

14. Venue is proper in this District under 28 U.S.C. § 1391(b)(2) because a substantial part of the events and omissions giving rise to the claims occurred in connection with the Staples store and proposed workplace at 627 East Calaveras Boulevard, Milpitas, California 95035. Assignment to the San Jose Division is appropriate because the position and material employment events were in Santa Clara County.

15. Plaintiff alleges concrete injury, including loss of access to a specific accepted employment opportunity and its wages, loss of timely access to the report and rights summary before the alleged report-based employment consequence became effective, and associated non-economic injury. The requested damages and prospective relief would redress those injuries.

FACTUAL ALLEGATIONS

A. The particular employment opportunity

16. On or about September 28, 2026, Staples advertised a full-time, on-site Retail Sales Supervisor position at 627 East Calaveras Boulevard, Milpitas, California 95035, Job ID

F9410. The posting described the position as "Hiring immediately," stated a pay range of $22.00 to $22.25 per hour, and described duties including customer engagement, floor leadership, merchandising, coaching associates, and assisting the general manager.

17. The posting represented that applicants with arrest or conviction histories would be considered consistently with applicable fair-chance laws. It did not state that placement on California's sex-offender registry categorically disqualified an applicant from the Retail Sales Supervisor position.

18. On September 29, 2026, at approximately 4:45 p.m., Staples sent Plaintiff an email with the subject "Congratulations! Your Staples Offer Has Been Accepted." The email confirmed a Retail Sales Supervisor offer at $22.00 per hour, weekly Friday pay, overtime eligibility, and a tentative October 5, 2026 start date.

19. The offer stated that the tentative start date was subject to change. Plaintiff does not allege that October 5 was an unconditional guarantee of wages or employment for a fixed period.

20. The offer also stated that employment was contingent on passing the background screening and that, when the background results were returned, the store's general manager would contact Plaintiff to confirm his start date. Form I-9 verification and other acknowledgments were described as day-one or upon-hire tasks. Plaintiff therefore understood that he could not self-schedule or begin paid retail shifts without Staples' authorization.

21. Plaintiff accepted the offered opportunity, remained ready and willing to work at the stated rate, and completed every pre-day-one screening task communicated to him. No document in Plaintiff's possession directed him to complete a further pre-day-one background-screening task, supplied a later confirmed reporting date, or authorized him to appear for a paid shift.

B. The First Advantage workflow and October 7 notice

22. On or about September 30, 2026, Plaintiff electronically completed and signed the First Advantage authorization for "Staples Retail Screening." The retained candidate-portal capture identifies "Staples Retail Screening" as "Form Completed 9/30/2026" and shows completed workflow and "Consent.pdf" documents. The same capture contains a report-status field reading "Report Pending." The capture does not itself establish a later completed-report status, adjudication result, or final Staples decision.

23. The authorization workflow presented a California investigative-consumer-report disclosure and a mechanism for electing delivery of a copy of a resulting report. Plaintiff elected to receive a copy. The executed consent, election record, delivery address, and electronic audit trail will establish the exact wording, selection, and timestamp. Plaintiff has received no Staples-specific report by email, postal mail, portal delivery, or any other method available to him.

24. At approximately 5:25 a.m. on October 7, 2026, First Advantage emailed Plaintiff a "Background Screening Notice." The notice stated that First Advantage "is reporting public record information" to "Staples Retail" at 500 Staples Drive, Framingham, Massachusetts 01701.

25. The October 7 notice did not identify the public records, complete report contents, report score, adjudication criteria, report-delivery timestamp, or employer hiring disposition. It did not provide Plaintiff with the report itself or a written summary of FCRA rights.

26. The October 7 notice supports a reasonable inference that a public-record report component was being transmitted or made available to the named Staples recipient for employment purposes. It does not, standing alone, establish the complete contents of the

Staples report or the identity of the person who accessed it.

27. On information and belief, the public-record component was furnished to or accessible by a responsible Staples hiring or screening user through the ordinary First Advantage client workflow on or about October 7. The precise recipient, client account, delivery date, access log, and report status are within First Advantage's and Defendants' records.

C. The particular basis for the alleged California registry source

28. First Advantage previously prepared an employment screening report concerning Plaintiff for a different employer on or about July 18, 2024. That report separately listed a "First Advantage National Criminal File Plus" search as "Eligible" with "No Record Found." It also listed a "National Sex Offender Registry Search - Department Of Justice Web Site" that was marked "Decisional" after a record was found. The detailed result expressly stated: "SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY."

29. The overall "Ineligible" result in that 2024 report reflected the other customer's criteria. Plaintiff does not allege that the other customer's result was Staples' result or that Staples adopted the other customer's criteria.

30. Other screening reports concerning Plaintiff in 2025 and 2026 repeatedly displayed a separately identified California registry result. Checkr reports dated December 23, 2025, March 27, 2026, August 7, 2026, and October 6, 2026 identified a "CA SEX OFFENDER REGISTRY" or comparable California registry component. Those reports separately identified other search categories, including county searches that were clear or received different flags.

31. A May 2026 HireRight report also recorded a California Department of Justice

sex-offender-registry result and warned that registry information may not be used for employment except as permitted by California law. A July 2026 InfoMart report identified a California registry result while separately reporting county-search results. These materials corroborate recurring source identification; they do not, by themselves, establish the contents, status, or outcome of the Staples-specific report.

32. On information and belief, the Staples First Advantage package contained a comparable registry-search entry identifying Plaintiff and naming or deriving its source from California's publicly disseminated sex-offender registry, and it presented that entry for employer review. The factual basis for that inference is the same vendor's express 2024 California-source label, the recurring 2025–2026 registry results, the October 7 notice naming Staples Retail, and the ensuing failure to authorize commencement.

33. Plaintiff has not seen the Staples report and does not claim the comparison reports prove its actual contents. The Staples report, source URL or source code, vendor audit trail, client-access record, and employer adjudication records will confirm or refute the source allegation.

34. Plaintiff does not challenge an employer's consideration of criminal-history information lawfully obtained from an independent source as such. The Penal Code claim pleaded below concerns only alleged use of information disclosed through California's publicly disseminated sex-offender-registry website, if the Staples report and source records establish that source and use.

D. The report-based noncommencement

35. The tentative October 5 start date passed without a manager-confirmed replacement date or paid shift. Two days later, First Advantage issued the October 7 public-record notice. From

the October 7 transmission through October 21, 2026, Staples did not authorize Plaintiff to report for paid work, schedule orientation or a first shift, provide a new start date, or identify any remaining pre-day-one screening action that Plaintiff could complete.

36. The scheduled day-one Form I-9 process did not begin. Plaintiff did not refuse an assigned shift, fail to appear after being instructed to report, or decline a documented onboarding requirement. He could not lawfully self-schedule or begin paid retail work without Staples' authorization.

37. On October 13, 2026, Staples Careers sent Plaintiff an automated message advertising a separate part-time warehouse opportunity. The message included a link stating "Click here to request to be removed from this list." It did not discuss Job ID F9410, the Retail Sales Supervisor offer, the background screening, any report, or any hiring decision. The message was a marketing communication and was not a formal rejection, rescission, or report-based notice.

38. As of October 21, 2026, Plaintiff had received no rejection, withdrawal, report-copy delivery, FCRA report-and-rights package, manager-confirmed start date, or report-based reason for the noncommencement. No communication identified an additional task that Plaintiff needed to perform before he could begin work.

39. Plaintiff does not allege that the October 5 tentative date, standing alone, constituted an adverse action. The alleged actionable consequence is the employer-controlled withholding of all paid commencement after the report-based screening event, without a communicated path to clearance, orientation, scheduling, or paid work.

40. On information and belief, a Staples hiring or screening user received or accessed the report or report component, treated the California registry entry as an obstacle to clearance,

and placed or retained Plaintiff's application in a review, no-start, or other decisionally blocking status, or instructed the Milpitas Store not to schedule him. The sequence supports that inference: the offer made the general manager's confirmation depend on returned screening results; the results were reported to Staples on October 7; and the promised confirmation never came.

41. The precise internal status and reason remain in Defendants' applicant-tracking history, reason codes, adjudication workflow, screening-user notes, communications with the store, staffing records, and requisition history. Plaintiff pleads the report-based no-start decision on information and belief because those records are not available to him before discovery.

42. Whatever label Staples used internally, the alleged consequence prevented Plaintiff from commencing the accepted position and earning paid wages. It was therefore a decision for employment purposes that adversely affected a prospective employee if, as alleged, it was based in whole or in part on the report.

E. Missing report, rights summary, and elected copy

43. Before the alleged no-start consequence became operative, Defendants did not provide Plaintiff with the consumer report relied upon or a written description of his rights under the FCRA. The October 7 vendor notice did not contain the report or rights summary. The October 13 marketing email was unrelated.

44. Plaintiff therefore could not inspect the actual source field, identify a mismatch or incomplete source designation, object to the use of information disclosed through the California registry website, submit contextual information, or seek reconsideration while the employment opportunity remained available. Plaintiff alleges a lost pre-decision opportunity connected to an actual employment consequence, not an omission divorced from any

employment effect.

45. Separately, Plaintiff elected to receive a copy of the investigative consumer report through the California authorization workflow. On information and belief, Staples Retail or the responsible defendant received a qualifying investigative consumer report or report component on or about October 7. Neither Defendants nor any agent has sent Plaintiff the elected copy, and Plaintiff has received none.

46. The precise date on which a completed report was "provided to the recipient," the identity of the recipient, and the delivery method are reflected in electronic transmission and access logs within Defendants' or First Advantage's possession. If receipt occurred on October 7, the three-business-day statutory period expired before October 21, subject to the precise receipt date and applicable business-day calculation.

F. Injury, mitigation, and damages

47. Plaintiff alleges earnings injury beginning no earlier than the report-based exclusion following October 7, not merely from the passing of the tentative October 5 date. At the offered rate of $22.00 per hour, a proved eight-hour shift would equal $176.00 in gross wages. Ten hypothetical eight-hour weekdays between October 8 and October 21 would equal $1,760.00, but Plaintiff does not allege that Staples guaranteed any particular schedule or number of hours.

48. Actual back pay depends on the hours Plaintiff would have been scheduled to work, the duration of the exclusion, interim earnings, mitigation, and the evidence concerning the position. Plaintiff seeks only causally attributable lost wages and benefits proved through records and testimony.

49. Plaintiff also seeks the proven value of employer-funded benefits, paid leave, retirement contributions, and reasonable mitigation or job-search expenses to the extent supported by the offer, plan terms, employment records, and evidence of actual loss. Plaintiff does not assume that any benefit or future schedule was guaranteed.

50. The conduct alleged caused uncertainty concerning an accepted employment opportunity, stress concerning delayed wages and future employment, and emotional distress associated with being prevented from beginning the offered work without access to the source information needed to respond. Plaintiff seeks compensatory non-economic damages according to proof, subject to evidence of nature, severity, duration, causation, and applicable law.

51. Plaintiff seeks future economic loss or front pay only for a period, schedule, and amount supported by evidence concerning likely employment, actual tenure expectations, replacement work, and mitigation. Plaintiff does not assert an automatic one-year or two-year entitlement.

52. Plaintiff seeks punitive, exemplary, or enhanced relief only where the governing statute authorizes it and the evidence establishes the required mental state and responsible corporate conduct. Plaintiff presently lacks access to the internal records identifying the responsible decisionmakers and any corporate policy, training instruction, adjudication protocol, approval, or ratification. Plaintiff will not count the same economic, emotional, statutory, enhanced, or punitive injury twice under overlapping theories.

FIRST CAUSE OF ACTION

Fair Credit Reporting Act, 15 U.S.C. § 1681b(b)(3)(A)

53. Plaintiff incorporates paragraphs 1 through 52.

54. Defendants procured or caused to be procured a consumer report concerning Plaintiff from First Advantage for employment purposes and in connection with the Retail Sales Supervisor position.

55. On information and belief, a responsible Staples defendant received or accessed a report or report component on or about October 7, including the public-record information described in the vendor notice, and considered that information in deciding whether Plaintiff would be cleared to commence paid work.

56. On information and belief, Staples used the report in whole or in part to implement or maintain the no-start consequence alleged above. The consequence left Plaintiff without a paid schedule, orientation, replacement start date, or another communicated action needed to become eligible to commence work.

57. The alleged employer-controlled no-start consequence was a "decision for employment purposes" that adversely affected a prospective employee within 15 U.S.C. § 1681a(k)(1)(B)(ii). Plaintiff does not contend that the initial vendor status, a private internal deliberation, or the passage of a tentative date alone constituted the adverse action. He alleges that the report-based employment consequence became operative when Staples withheld commencement without a communicated path to paid work.

58. Before taking that alleged report-based adverse action, Defendants failed to provide Plaintiff with a copy of the consumer report and a written description of his rights under the

FCRA as required by 15 U.S.C. § 1681b(b)(3)(A).

59. First Advantage's October 7 notice did not supply the report or rights summary. The October 13 marketing message was unrelated and did not provide either required document. Plaintiff received no report-and-rights package before the alleged no-start decision became effective.

60. The omission deprived Plaintiff of timely access to the actual document on which the employer allegedly relied. Plaintiff would have inspected the source and contents, challenged any inaccurate or misleading entry, objected to employment use of information disclosed through the California registry website, and supplied contextual information while the hiring decision could still be reconsidered.

61. Defendants' failure was negligent within 15 U.S.C. § 1681o. If discovery establishes that responsible personnel knew of the FCRA pre-adverse-action requirement and deliberately or recklessly implemented the report-based no-start consequence without the required materials, the conduct was willful within 15 U.S.C. § 1681n.

62. As a direct and proximate result, Plaintiff suffered employment, informational, and non-economic injuries, including lost access to paid work and the opportunity to respond before the report-based consequence took effect. Plaintiff seeks the actual, statutory, punitive, cost, fee, and other relief authorized by the applicable level of culpability, without duplicative recovery.

SECOND CAUSE OF ACTION

Investigative Consumer Reporting Agencies Act, Cal. Civ. Code § 1786.16(b)

63. Plaintiff incorporates paragraphs 1 through 52.

64. The First Advantage background investigation was procured for an employment purpose and concerned Plaintiff's character, general reputation, personal characteristics, or mode of living through public-record and other investigative information. It was therefore an investigative consumer report governed by California Civil Code § 1786 et seq.

65. On or about September 30, 2026, Plaintiff completed Staples' electronic authorization workflow and elected to receive a copy of the investigative consumer report. The original executed form and electronic audit record identify the precise election, delivery method, address, and timestamp.

66. On information and belief, Staples Retail or the responsible defendant received an investigative consumer report or qualifying report component concerning Plaintiff on or about October 7, 2026, as reflected by First Advantage's notice that it was reporting public-record information to Staples Retail.

67. California Civil Code § 1786.16(b) required the report recipient to send the elected copy within three business days after the report was provided to the recipient, directly or through a contractor. Defendants and their agents did not send the elected copy within the statutory period, and Plaintiff received no copy by email, mail, portal delivery, or other method.

68. Plaintiff pleads the exact report-receipt date in the alternative because the transmission and access logs are within Defendants' and First Advantage's control. If Defendants contend that

the qualifying report was received later than October 7, the statutory deadline ran from that later receipt date, and Plaintiff alleges that no copy was sent within the applicable period.

69. The missing copy deprived Plaintiff of timely access to the actual source coding and report contents while the accepted employment opportunity remained unresolved. It prevented him from identifying a source error, incomplete designation, or unlawful source use at a time when the information could affect commencement.

70. This cause of action is independent of whether Defendants issued a formal rejection. Plaintiff seeks the individual remedies authorized by Civil Code § 1786.50, including the greater of actual damages or applicable statutory damages, costs and recoverable fees, and additional punitive damages only upon the required showing of gross negligence or willfulness. Plaintiff seeks one recovery for this individual report-copy violation, not a separate award for each page, component, or transmission.

THIRD CAUSE OF ACTION

California Penal Code § 290.46(j), Prohibited Employment Use of Registry Information

71. Plaintiff incorporates paragraphs 1 through 52.

72. California Penal Code § 290.46(j)(2)(E) prohibits use for employment purposes of information disclosed pursuant to the California publicly disseminated sex-offender-registry statute, except as authorized by the statute or another applicable law, including a qualifying protective use.

73. Plaintiff does not challenge the consideration of criminal-history information lawfully obtained from an independent source as such. This cause of action depends on proof that the

information used by the responsible employer was information disclosed pursuant to California's registry-website provision.

74. First Advantage's prior report concerning Plaintiff separately identified a Department of Justice sex-offender-registry search, marked it "Decisional," and expressly named "CALIFORNIA SEX OFFENDER REGISTRY" as the source. Other 2025 and 2026 reports repeatedly displayed a separately identified California registry result. The October 7 notice then identified First Advantage's public-record transmission to Staples Retail, followed by the failure to authorize Plaintiff's commencement.

75. Those facts support a reasonable inference, presently pleaded on information and belief, that the Staples package contained a comparable California registry-source entry identifying Plaintiff and presented it for employer review. Plaintiff has not seen the Staples report; the source fields. URL or source code, delivery logs, and employer adjudication records will establish whether the information was disclosed pursuant to § 290.46.

76. If the Staples report or source audit trail establishes that the information came from California's registry website, then on information and belief the responsible Staples defendant received or accessed that information and used it as a substantial factor in imposing or continuing the no-start barrier to Plaintiff's employment.

77. The alleged use concerned ordinary retail supervision, merchandising, customer assistance, and coaching. No communication to Plaintiff identified a particular person at risk, a concrete protective purpose, or another legal authorization for registry-website use. On information and belief, the challenged exclusion was a general employment-screening decision rather than a qualifying protective use. Plaintiff does not rely on the absence of an explanation alone to prove that no exception applied.

78. The alleged use caused Plaintiff to lose the opportunity to commence paid work and caused attendant proven economic and non-economic injuries. Plaintiff seeks the remedies authorized by Penal Code § 290.46(j)(4)(A), including actual damages, any additional amount permitted by the statute, and any authorized fees, exemplary damages, or civil penalty, without duplicative recovery.

79. Plaintiff seeks injunctive relief under Penal Code § 290.46(j)(4)(B) only if the evidence establishes the statutory prerequisites and a continuing or threatened misuse. Plaintiff does not seek to compel employment or to prohibit Staples from considering lawfully obtained information from independent sources.

FOURTH CAUSE OF ACTION

California Unfair Competition Law, Cal. Bus. & Prof. Code § 17200

80. Plaintiff incorporates paragraphs 1 through 52.

81. To the extent Defendants are maintaining a report-based no-start exclusion founded on information disclosed pursuant to Penal Code § 290.46, or are continuing to withhold an elected investigative consumer report in violation of California law, that conduct constitutes an unlawful business practice under California Business and Professions Code § 17200.

82. Plaintiff lost money through exclusion from available paid work and incurred or will incur reasonable mitigation expenses. Plaintiff also has a continuing interest in removing or correcting any unlawful screening barrier if Defendants continue to maintain the application or report-based status.

83. Plaintiff seeks only prospective equitable relief under the UCL. He does not seek damages, civil penalties, punitive damages, or speculative future wages under this cause of action. If the

position and application are conclusively closed and no continuing or threatened injury remains, the equitable remedies under this cause of action will be limited by the evidence and applicable law.

84. Any equitable order should be narrowly tailored to the proven continuing violation, such as discontinuing ongoing reliance on information disclosed pursuant to § 290.46 for Plaintiff's employment decision absent a qualifying exception, supplying any report or notice still legally required, and reconsidering any still-pending application under lawful criteria. Plaintiff does not request compulsory hiring, a predetermined employment decision, or court supervision of Staples' nationwide hiring system.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests judgment against the defendant or defendants proven responsible as follows:

A. Actual damages, including proven lost wages for causally lost hours or shifts, less interim earnings and appropriate mitigation;

B. The proven value of employer-funded benefits, paid leave, retirement contributions, and reasonable mitigation or job-search expenses, to the extent authorized and supported by evidence;

C. Reasonable future economic loss or front pay only for a period, schedule, and amount supported by evidence concerning likely employment, actual tenure expectations, replacement work, and mitigation;

D. Compensatory non-economic damages in an amount proved at trial, subject to applicable

law and proof of causation, nature, severity, and duration;

E. Under 15 U.S.C. §§ 1681n and 1681o, the actual, statutory, and punitive remedies authorized by the proven level of culpability, without recovering alternative forms cumulatively where the statute does not permit it;

F. Under California Civil Code § 1786.50, the greater of actual damages or applicable individual statutory damages for the report-copy violation, together with recoverable costs, fees, and punitive damages where authorized and proved;

G. Under California Penal Code § 290.46(j)(4)(A), actual damages, any permitted additional amount, and any authorized fees, exemplary damages, or civil penalty, subject to the statute and without duplication;

H. Punitive or exemplary relief only to the extent authorized by the governing statute and supported by proof of the required mental state and corporate responsibility, including any evidence concerning a policy, training instruction, adjudication protocol, approval, or ratification; this is not a request to impose duplicative relief under separate causes of action;

I. Narrow prospective equitable relief under California Business and Professions Code § 17203 and, if the statutory prerequisites are established, under Penal Code § 290.46(j)(4)(B), without an order requiring Staples to employ Plaintiff;

J. Prejudgment and post-judgment interest where authorized;

K. Recoverable costs and attorney's fees only where lawfully available;

L. A jury trial on all issues triable as of right; and

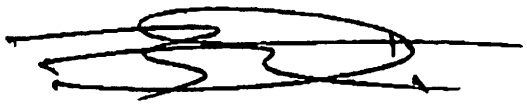
M. Such other relief as the Court finds just and proper, with a single recovery for each legally compensable loss and no duplicate award of wages, benefits, emotional injury, statutory injury, enhanced damages, or punitive damages under overlapping theories.

DEMAND FOR JURY TRIAL

Plaintiff demands a jury trial on all issues so triable as of right. Equitable issues are reserved for the Court.

Dated: October 26, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona